

This Agreement is between

Worker: Contracting party

DYNEXIA CREST

71-75, Shelton Street, Covent Garden
LONDON WC2H 9JQ
United Kingdom

CRN: 16538264

Worksome Ltd

The Typewriter Building, 140 Borough High St
SE1 1LB London
United Kingdom

CRN: 11615731

Worker: Omer Wasiq

Summary terms

The terms set forth herein, along with [Worksome's Terms of Service](https://www.worksome.com/legal-center) (<https://www.worksome.com/legal-center>) and any Supplemental Terms, collectively constitute the Booking Contract between the parties. Worksome's Terms of Service and any Supplemental Terms are incorporated by reference and are binding components of this Booking Contract.

Representative

Omer Wasiq
Phone: +447587916089

Client

McCann-Erickson Healthcare UK Ltd
135 Bishopsgate LONDON EC2M 3TP United Kingdom
CRN: 00687406

Deliverables

Regulatory operations and submissions - various accounts
Regulatory operations and submissions - various accounts
working with the in-house team on Veeva and Fuse uploads
24th June to 27th June
30th June to 2nd July 2025

**Period of
engagement**

From 2025-06-24 00:00:00 until 2025-07-02 00:00:00 (unless terminated earlier in accordance with this Agreement)

Location

95 Camelot Way BIRMINGHAM B10 0NL United Kingdom

Fees

GBP 325.00 per day for providing the Services. There is no overtime payment.

Payment Terms

The Platform Provider will pay the Freelancer the Fees due in accordance with its Agreement with the Freelancer.

Payments will be processed 14 days following Customer's approval of each invoice. Standard processing time applies.

Expenses

The Agency will only reimburse the Freelancer via the Platform Provider for such expenses as the parties agree in advance in writing.

Client Contact

Leanne Tilly or such other member of the Agency's staff who is nominated to liaise with the Freelancer on behalf of the Agency.

Phone: +447380165621

Detailed freelancer terms and conditions

Contract and Payment Structure

1. Freelancer Types for Bookings

The following represents the potential types of Freelancer engagement that the Platform can accommodate:

Freelancer Type	Engagement model the freelance consultant may use
PSC Freelancer	A freelance consultant can supply their services through their own registered company.
PAYE Freelancer	A freelance consultant can be engaged as a statutory worker for an assignment by Worksome and will be entitled to receive such payment for or receive the benefit of any statutory rights where applicable in addition to the assignment fees (subject to any statutory deductions for tax, national insurance contributions). Such engagements will typically work best where assignments are agreed on a time and materials basis based upon hours or days worked.
Payroll Freelancer	A freelance consultant can be engaged as a statutory worker for an assignment by a third party payroll organisation (often known as umbrella companies) and will be entitled to receive such payment for or receive the benefit of any statutory rights where applicable in addition to the assignment fees (subject to any statutory deductions for tax, national insurance contributions). Such engagements will typically work best where assignments are agreed on a time and materials basis based upon hours or days worked.
Sole Freelancer	A freelance consultant may supply their services through a sole trader business if they deliver Freelance Services exclusively from their home office or from a serviced office not connected or instructed by any client or if they have received a determination from HMRC that they are self-employed or otherwise meet any agreed list of grades published by HMRC which may be treated as self-employed. If the sole trader is unable to meet our requirements for freelance services, the freelance consultant will be required to be engaged as a PAYE individual for that assignment.

2. Payment for Bookings

2.1. Irrespective of whether a freelance consultant agrees to deliver a contract assignment direct to a company following a Booking or delivers a contract assignment to the company via Worksome, Worksome will administer payment of all assignment fees to freelance consultants via the platform.

2.2. Unless a freelance consultant is operating in business on their own account either as a sole trader or through a personal service company and have passed the tests required to validate and accept their self-employment status via our platform, a freelance consultant may need to be engaged in a manner which will require assignment fees to be taxed and sums deducted by Worksome or a payroll intermediary at source for income tax and national insurance purposes where the assignment is either being delivered in the United Kingdom and/or you are domiciled in the United Kingdom.

2.3. To assist freelance consultants in understanding the assignment fee rates and the impact of being taxed at source on such assignment fees versus receipt of a gross fee rate, Worksome has provided examples of how freelance consultants may be paid via the platform, and what deductions will be required to be made at source in respect of remuneration payable for a contract assignment, depending on the manner in which the freelance consultant is engaged through the Platform to perform freelance services.

2.4. Booking fee rates for any booking will never be offered to a freelance consultant who is engaged as a statutory worker at a rate lower than the Minimum Wage.

3. Legally binding contracts

3.1. Once a freelance consultant has accepted a booking confirmation, the booking confirmation and these terms and conditions and any supplemental terms referenced in the booking confirmation create a legally binding contract and the freelance consultant is contractually bound to deliver the freelance services set out in the booking confirmation to the client.

3.2. All bookings made via the Platform are subject to and governed by our standard terms and conditions at www.worksome.co.uk/terms/ which are incorporated into each booking.

4. Contracting party

4.1. To deliver freelance services to a business via the Platform, there are three ways in which freelance consultants may contract to deliver freelance services through the platform. The freelance consultant may enter into a contract:

4.1.1. directly with the client, and the client appoints Worksome to act on its behalf to administer payment of the assignment fees to the freelance consultant;

4.1.2. directly with Worksome through the platform to deliver the freelance services to the client and Worksome will in turn contract with the client; or

4.1.3. directly with a payroll intermediary through the platform to deliver the freelance services to the client, the payroll intermediary will in turn contract with Worksome, and Worksome will in turn contract with the client.

4.2. The identity of the contracting party to an agreed contract with the freelance consultant will depend on the nature of the contract assignment, the engagement type of the freelance consultant, and the requirements of Applicable Laws, particularly Tax Legislation. The contracting party will be determined for each contract assignment and will be set out in the booking confirmation on the following basis (please note all definitions for the following terms are set out in the Schedule to these booking terms and conditions below):

Freelancer Type	Contracting Party	Who pays the Freelancer
PAYE Freelancer	Worksome	Worksome
Payroll Freelancer	Third party payroll intermediary (umbrella company)	Third party payroll intermediary (umbrella company)
PSC Freelancer	Worksome	Worksome
PSC Freelancer	Client	Worksome on behalf of the Client
Sole Freelancer	Worksome	Worksome
Sole Freelancer	Client	Worksome on behalf of the Client

4.3. You accept that where Worksome is the Contracting Party as identified in the Booking Confirmation, any Agreement (as defined in the Standard Terms) will be between you and Worksome. Accordingly, in this situation, all references to the "Company" as the Contracting Party in the Standard Terms will be construed accordingly.

4.4. Where an engagement in the United Kingdom requires deductions for taxes to be made at source for any assignment fees payable to a freelance consultant, either Worksome will act as a payroll intermediary between the business and the freelance consultant, or the freelance consultant may use a third party payroll intermediary to ensure that all relevant tax laws are complied with here in the United Kingdom.

4.5. If an engagement in the United Kingdom does not require deduction of taxes at source, then the business will be able to administer a direct contract with the freelance consultant through the Platform, and Worksome will simply act as an agent for the business in raising invoices on behalf of freelance consultants and administering gross payments to the freelance consultant. The freelance consultant understands that in this role, Worksome shall only be responsible to the freelance consultant to make payment of assignment fees approved and paid by the business. Worksome shall have no other responsibility or other liability to the freelance consultant as the freelance consultant shall have a direct contract with the Client.

5. Contracting Party - Client

5.1. Occasionally, a Client may decide that it requires the freelance consultant to enter into a bespoke agreement to deliver the freelance services. If there is any conflict between these booking terms and conditions of engagement and the terms of the bespoke agreement (excluding any terms herein relating to invoicing and payment terms) the terms of the bespoke agreement shall take priority to the extent of that conflict.

5.2. If there is a bespoke agreement relevant to a particular Client and which applies to all Booking Confirmations for the Client you will find the terms of that bespoke agreement set out in or attached to the relevant Booking Confirmation.

6. Specific terms for a Booking

6.1. When Worksome or a Payroll Intermediary acts as the Contracting Party, and the Client is not directly engaging the freelance consultant for a contract assignment, the Client may request from time to time that a freelance consultant sign additional undertakings with the Client to comply with specific concerns relevant to the assignment. Often these undertakings involve the freelance consultant agreeing to additional obligations to keep the Client's information confidential, to ensure that the Client becomes the owner of the freelance services so they can continue to use the same after the assignment ends, and to ensure that any personal data the freelance consultant handles is compliant with data protection laws.

6.2. Such specific terms of a Client are supplementary to these booking terms and conditions, and do not replace or vary these booking terms and conditions. If there is ever a conflict between these booking terms and conditions agreed with the Contracting Party and any specific terms for a Client, the specific terms for a Client will take priority to resolve that conflict.

6.3. The specific terms applicable to a Client will be set out in or attached to the relevant Booking Confirmation.

7. Specific terms for a Booking – Payroll Intermediary

7.1. When a Payroll Intermediary acts as the Contracting Party, you will be required to enter into a contract of employment with the Payroll Intermediary for the Booking, and which shall govern your statutory rights and obligations as an employee or worker of the Payroll Intermediary.

7.2. Your employment contract is entered into to maintain your relationship as an employee of the Payroll Intermediary and to confirm your statutory entitlements as an employee or worker of the Payroll Intermediary and is supplementary to these terms and conditions of engagement. Your employment contract does not replace or vary these booking terms and conditions. If there is ever a conflict between these booking terms and conditions and your employment contract with a Payroll Intermediary, your employment contract will take priority to resolve that conflict.

General Terms and Conditions

8. Definitions and Interpretation

8.1. The definitions and principles for interpretation we use for these booking terms and conditions can be found in the Schedule below.

9. Quality of Freelance Services

9.1. You acknowledge that you will deliver the Freelance Services and or any Deliverables in accordance with the standards, duties, and warranties set out in the Standard Terms.

9.2. In particular, you acknowledge and agree that the Freelance Services and/or any Deliverables will be performed in accordance with and subject to Clauses 4 (The Booking), 5 (Agreement), 6 (Freelance Services), 7 (Your obligations), 8 (Confidentiality), 9 (IPR), and Clause 11 (invoicing and payment via the platform) of the Standard Terms. For the purposes of these Terms, all references to the Company in the Standard Terms shall be construed as the Contracting Party.

10. Issues with Freelance Services

10.1. If the Client is dissatisfied with the Freelance Services and or any Deliverables performed by the Freelancer (that is they do not meet the standard expected, are deficient or defective, or have not been delivered in accordance with any agreed specification), and rejects the same and raises a dispute with the Freelancer and/or Worksome, the Freelancer shall be required to re-perform, rectify, or replace the Freelance Services and or Deliverables where the same are capable of remedy in the opinion of the Client (**Rectification**). The Freelancer will be required to complete any Rectification required at its own cost and to be completed in its own time (ensuring the Rectification does not impact or cause any delay to the Booking) and at no additional cost to Worksome or the Client. If the Freelancer refuses to complete the Rectification, or any Rectification is rejected on the basis it is unsatisfactory in the opinion of the Client, or if issues raised by the Client as regards the Freelance Services and or Deliverables are not capable of remedy (in the opinion of the Client) Worksome shall be entitled to terminate the Booking pursuant to clause 14.4.

10.2. If the Client is dissatisfied with the Freelance Services performed by the PAYE Freelancer, the parties may agree terms to rectify, replace and or re-perform the Freelance Services where the same are capable of remedy in the opinion (**Rectification**) but the Contracting Party shall be under no obligation to offer the PAYE Freelancer the chance to perform any Rectification. The Contracting Party reserves the right to terminate the Booking at any time if it is dissatisfied with the Freelance Services and or professional conduct of any PAYE Freelancer pursuant to clause 14.4. In such circumstances the Contracting Party shall only be obliged to pay for Freelance Services delivered to the reasonable satisfaction of the Client to the date of termination.

11. Time Reports and Payment

11.1. The Freelancer will be entitled to receive payment of the Booking Fees as detailed in a Booking Confirmation for Freelance Services delivered and approved by the Client.

11.2. All Fees payable to the Sole Freelancer or PSC Freelancer hereunder (i) will be exclusive of VAT, which will be charged in addition by the Freelancer as applicable (where the Freelancer is registered for VAT and has provided a VAT registration certificate) and shown separately on the invoice at the rate and (ii) will be paid gross on the basis that the Sole Freelancer and PSC Freelancer is responsible for all Freelancer Payments respectively.

11.3. All Fees are inclusive of expenses unless otherwise agreed and set out in a Booking Confirmation. Travel costs to and from any Location are the Freelancer's sole responsibility and the Freelancer warrants, represents and undertakes that any travel and subsistence claimed is compliant with prevailing HMRC rules.

11.4. Unless an Agreement requires payment at completion of milestones or on the delivery of Deliverables (in accordance with a Booking Confirmation), the Freelancer will at the Report Frequency complete a Time Report via the Platform to confirm the Freelance Services performed during the period to which such Time Report relates, and which the Platform will then seek the approval of an authorised representative of the Client. Failure to submit a Time Report in accordance with the Report Frequency may delay payment to the Freelancer.

11.5. Upon receipt of an authorised Time Report the Platform will raise a self-bill invoice for the Freelance Services performed through the Platform and at the invoicing interval set out in the Booking Confirmation. The Contracting Party (or Worksome on behalf of the Contracting Party as applicable) will make payment of the Booking Fees due under any invoice in accordance with the payment terms set out in the Booking Confirmation and subject to receiving the relevant Time Report approved by the Client supporting any invoice raised via the Platform. Payment of the Booking Fees to any Freelancer (apart from any PAYE Freelancer) is conditional upon Worksome receiving the relevant approved Time Report from the Client.

11.6. No invoices may be raised by the Freelancer other than on behalf of the Freelancer in accordance with clause 11.5, and the Freelancer shall not raise any invoice direct to the Contracting Party, the Client and or Worksome.

11.7. Worksome will not be obliged to raise invoices for and make payment in respect of any invoice to any Freelancer where the Freelancer fails to complete a Time Report within a period of 4 weeks of the end of a period or completion of any milestone or Deliverable to which the Time Report relates. Worksome will make no payment to the Freelancer for any period during which Freelance Services are not performed under a Booking (irrespective of the reason and which includes any period during which the Client does not require the Freelance Services). Worksome shall only be obliged to make payment of Booking Fees to Freelancers, whether as Contracting Party or on behalf of the Client, where the Client has approved and has made payment or given a commitment to make payment in respect of the Booking Fees to Worksome.

11.8. The Freelancer shall only be entitled to Fees for the Freelance Services and any Deliverables successfully performed, delivered and accepted by the Client and for expenses incurred which have been agreed and raised in accordance with clause 11.3. Fees for Freelance Services and any Deliverables chargeable on a time and materials basis will only be paid against time actually incurred in the performance of and delivery of the Freelance Services and or any Deliverables and which have been approved by the Client.

11.9. On the basis there is no mutuality of obligations between the Freelancer and Worksome and or the Client, the Freelancer accepts that for Jobs which are likely to continue for a few weeks or more, there may be periods during the Booking (including during any period of notice served by either Party) where the Freelancer is unable to progress and or deliver the Freelance Services and or any Deliverables, whether due to the Client suspending the Freelance Services (for whatever reason), the occurrence of any systems failure of the Client and or its End Customer, any Force Majeure Event affecting any of the Parties, the Client, or End Customer, or otherwise arising due to a reduction of requirements for the Freelance Services under a Booking Confirmation. The Freelancer accepts that it will not be entitled to invoice Fees in such circumstances and neither the Contracting Party nor Worksome will be liable to the Freelancer for any Liabilities suffered by the Freelancer arising in respect of the same.

11.10. A Freelancer operating in business on its own account shall be entitled to charge interest at the rate of 2% per annum above the Bank of England base rate on any sums due but not paid from thirty days after the date payment became due until the actual date of payment. The parties agree that this represents a substantial remedy in the context of the Late Payment of Commercial Debts (Interest) Act 1998. For the avoidance of doubt, this provision does not apply any PAYE Freelancer.

11.11. The Freelancer agrees that any overpayment of the Booking Fees will constitute a debt payable to Worksome on demand (excluding any Payroll Freelancer).

11.12. The Contract Party or Worksome shall be entitled to withhold payment in respect of any self-bill invoice raised through the Platform where (i) the Client raises a dispute with respect to any aspect of the Freelance Services and/or the Deliverables in accordance with clause 10 or (ii) the Client withholds payment of Worksome's invoice for the same where a dispute relating to the Freelance Services and Deliverables performed (which has come to light following approval of any Time Report or acceptance of the Freelance Services and or Deliverables), or (iii) where such dispute relates to any other loss or damage incurred by the Client as a consequence of any act, error, or omission of the Freelancer, any Representative, or any Substitute (as applicable) or (iv) where the Freelancer has failed to return property or items in accordance with Clause 15 (**Dispute**).

11.13. Where the Client provides written evidence of any Dispute and any loss or damage suffered or otherwise incurred by the Client arising in respect of such Dispute the Contracting Party and/or Worksome shall be entitled to set off and/or otherwise make a deduction in respect of any such claim for loss and/or damages from the Booking Fees and where applicable to the extent that the same has been set off and or otherwise deducted against the Booking Fees invoiced to the Client. For the avoidance of doubt, the Contracting Party or Worksome shall be entitled to set off or otherwise make a deduction for any loss or damage that Worksome incurs as a consequence of the Client's set off and/or deduction (which shall include Worksome fees chargeable to the Client). Payment of the Booking Fees under any invoice is strictly conditional upon the Client not having raised any Dispute in respect of such Booking Fees.

11.14. Without prejudice to and notwithstanding Clause 11.12, the Contracting Party and/or Worksome will be entitled to deduct and/or set off any sums owed by the Freelancer arising under or in connection with any Agreement (including under any indemnity) against any Booking Fees due to the Freelancer arising under and or in connection with any Agreement. The Contracting Party and/or Worksome reserves the right to recover any balance of sums owed by the Freelancer that cannot be recovered from set off against any Booking Fees.

12. Statutory Entitlements during Bookings

AWR Freelancers

12.1. Where the Booking Confirmation continues beyond the Qualifying Period, the AWR Freelancer may be entitled to additional rights under the Relevant Terms and Conditions set out below, which shall take effect from the completion of the Qualifying Period (the details of which shall be set out in a variation to the Booking Confirmation issued by the Contracting Party):

12.1.1. additional paid annual leave (to the extent that the Relevant Terms and Conditions entitlement exceeds the existing paid annual leave entitlement the AWR Freelancer is entitled to pursuant to the Agreement) as confirmed in the Booking Confirmation;

12.1.2. eligibility to qualify for and be paid a bonus in accordance with the Client's applicable bonus scheme (which may be discretionary or contractual), the payment of which shall be subject to the terms and conditions of the Client's bonus scheme; and

12.1.3. such duration of working time, rest periods and or rest breaks as apply to the Booking which differ from and are preferential to the AWR Freelancer's rights and entitlements pursuant to the Agreement.

12.2. The AWR Freelancer shall promptly upon the request of the Contracting Party (whether before or during any Booking) provide details of any prior assignments or projects that s/he has undertaken for the Client (whether directly or indirectly through a third party) within the last 12 months (irrespective of who the intermediary third party may have been) including details of the number and type of roles undertaken so that the Contracting Party may determine when any entitlements under the AWR may apply.

12.3. Under Regulation 12 and Regulation 13 of the AWR, the AWR Freelancer may from commencement of the Freelance Services be entitled to access collective facilities and amenities at the Location (which other employees have access to) and will be entitled to access internal vacancies that the Client may have respectively. The AWR Freelancer shall ensure that if s/he has any queries relating to these "day one rights", such queries are raised directly with the Client.

12.4. If the AWR Freelancer considers that they have not or may not have received equal treatment under the AWR the AWR Freelancer may raise this in writing with the Contracting Party setting out as fully as possible the basis of the AWR Freelancer's concerns. With the exception of those "day one rights" set out in clause 12.3 above, the AWR Freelancer shall raise any concerns or complaints arising from the AWR directly with the Contracting Party in the first instance as required by the AWR.

12.5. The Contracting Party is entitled to make a payment in lieu of any additional holiday entitlement due to the AWR Freelancer pursuant to clause 12.1.1. Accordingly, unless otherwise stated in the Booking Confirmation, the Fee rate shall include the AWR Freelancer's basic salary (which shall meet the requirements of basic pay pursuant to the AWR) and payment in respect of any additional holiday entitlement due to the AWR Freelancer pursuant to clause 12.1.1.

12.6. The AWR Freelancer shall not be entitled to charge for Rest Periods during any Booking except to the extent that the Contractor and/or the Representative is required to perform the Freelance Services during any Rest Period as directed by the Client (and where stated in any Booking Confirmation) and/or such Rest Periods are required to be paid beyond the Qualifying Week on the basis such Rest Periods fall within Relevant Terms and Conditions.

PAYE Freelancer

12.7. Under the Working Time Regulations, a statutory worker is entitled to 5.6 weeks paid leave per year. All entitlement to leave must be taken during the course of the Leave Year in which it accrues. No payments can be made in lieu of untaken annual leave (except on termination of a Booking) and no holiday entitlement can be carried over from one Leave Year to the next. It is the PAYE Freelancer's responsibility to ensure that s/he take their leave entitlement during the relevant Leave Year.

12.8. Entitlement to paid leave for any PAYE Freelancer during a Booking accrues in proportion to the amount of time worked continuously by the PAYE Freelancer during a Booking and which occurs during the Leave Year. Payment for periods of annual leave taken during the Booking will be calculated in accordance with and in proportion to the number of hours that the PAYE Freelancer has worked during the Booking.

12.9. If the PAYE Freelancer wishes to take paid leave during any Booking, the PAYE Freelancer must notify the Contracting Party in advance through the Platform. The period of notice required from the PAYE Freelancer must be at least twice the length of the period of leave requested. The Contracting Party may request that any paid annual leave is taken at a time that is suitable to the Client and/or may require the PAYE Freelancer to take paid annual leave at specific times or delay taking paid annual leave during specific times.

12.10. The PAYE Freelancer is not entitled to paid annual leave on bank holidays or public holidays. Where a bank holiday or other public holiday falls during a Booking and the PAYE Freelancer does not work on that day, then subject to the PAYE Freelancer having accrued entitlement to paid leave, the PAYE Freelancer may request to take the bank or public holiday as paid leave. All such requests should be sent to the Contracting Party via the platform.

12.11. In certain circumstances, the PAYE Freelancer may be entitled to enter into an agreement with the Contracting Party, allowing the PAYE Freelancer to request annual leave to be taken in advance of accrual, provided the relevant criteria are satisfied. Each Booking Confirmation will confirm what arrangements have been requested by the PAYE Freelancer and agreed by the Contracting Party. The PAYE Freelancer shall enter into any additional agreement reasonably required by the Contracting Party to administer the wishes of the PAYE Freelancer with respect to any annual leave arrangements.

12.12. The PAYE Freelancer agrees and that any overpaid annual leave entitlement will be deducted from any final Time Report processed by the Contracting Party and the PAYE Freelancer hereby authorises such deduction to be made.

12.13. The PAYE Freelancer may be eligible for statutory sick pay (SSP) for certain periods of sickness absence during a Booking where the PAYE Freelancer is delivering Freelance Services on a time and materials basis on an hourly or daily Booking Fee rate, provided that s/he meets the relevant statutory criteria. The qualifying days for SSP purposes are Monday to Friday unless otherwise stated in any Booking Confirmation. The PAYE Freelancer will not be entitled to SSP for the first 3 qualifying days of sickness for SSP purposes.

12.14. There are no current contractual entitlements to a pension for the PAYE Freelancer, however the Contracting Party will comply with any statutory obligations under the Pension Act 2008 to provide access to an Auto Enrolment Scheme where applicable. The Contracting Party will notify the PAYE Freelancer via the Platform as to the terms of and eligibility for the Auto Enrolment Scheme. If in any week the PAYE Freelancer is required to be automatically enrolled into the Auto Enrolment Scheme the minimum employee contributions shall be deducted from the Booking Fees and which shall be paid into the Auto Enrolment Scheme.

12.15. The PAYE Freelancer will be entitled to opt out of the Auto Enrolment Scheme after the PAYE Freelancer has been automatically enrolled, but only in accordance with the rules of the Auto Enrolment Scheme, which shall be provided in writing to the PAYE Freelancer.

13. Liability and Insurance

13.1. Except in the event of death or personal injury caused by the negligence of party or for any other liability which cannot be limited in law, the Contracting Party's liability to the Freelancer under or in connection with any Agreement, whether arising from contract, tort, statute or otherwise, will be limited to 100% of the Booking Fees payable to the Freelancer under the Agreement to which such liability relates.

13.2. Where the Contracting Party is the Client, the Freelancer accepts that Worksome's only liability to the Freelancer in acting as payment intermediary for the Client in respect of any such Agreement, is to raise invoices on behalf of the Freelancer through the Platform and to make payment of the Booking Fees approved and paid for by the Client. If the Client fails to make payment to Worksome for any Booking Fees through the Platform, for whatever reason, and Worksome has used reasonable endeavours to secure payment from the Client, Worksome shall have no further liability to the Freelancer. The Freelancer shall be obliged to pursue the Contracting Party to the Agreement for any breach of such Agreement and or failure to make payment of the Booking Fees. If the Client makes payment to Worksome, and Worksome fails to make payment of the Booking Fees to the Freelancer, the Freelancer shall be entitled to pursue Worksome for non-payment, and in this situation, the Freelancer will hold the Contracting Party harmless from and against any claims upon the Contracting Party providing evidence to the Freelancer that payment of the Booking Fees has been made to Worksome.

13.3. Where the Contracting Party is a Payroll Intermediary, the Payroll Freelancer accepts that Worksome shall have no liability to the PAYE Freelancer in respect of any such Agreement. The Payroll Freelancer understands and agrees that the Booking Confirmation will be agreed between the Payroll Freelancer and the Payroll Intermediary, pursuant to the Parties entering into an Employment Contract.

13.4. The Freelancer will have liability for and will indemnify and keep Worksome, the Client, and Contracting Party (**Indemnified Parties**) indemnified for and against any Liability incurred by the Indemnified Parties whether directly or indirectly arising out of or in connection with:

13.4.1. any breach by the Freelancer and/or any Representative of any terms of any Agreement;

13.4.2. any breach of any the warranties, representations, and undertakings provided by the Freelancer;

13.4.3. any Default of the Freelancer and/or any Representative;

13.4.4. any failure by the Freelancer to commence the Booking once an Agreement is in place or perform the Freelance Services during the Booking;

13.4.5. any breach of confidentiality by the Freelancer and/or any Representative;

13.4.6. any infringement by the Freelancer and/or any Representative of the Intellectual Property Rights of any person;

13.4.7. any breach by the Freelancer and or any Representative of health and safety laws, health and safety policies and procedures, and/or health and safety codes of practice;

13.4.8. any claim by the Freelancer and/or the Representative pursuant to the AWR and or Conduct Regulations;

13.4.9. any failure by the Freelancer to comply with any Laws and make the Freelancer Payments (as applicable);

13.4.10. any issues with the Freelance Services and/or the Deliverables which cannot be remedied in accordance with clause 10 above;

13.4.11. any period during which the Client is deprived of the use of the Freelance Services and or any Deliverables by reason of such negotiations, replacements or modifications in respect of the Freelancer's rectification of any infringement of Intellectual Property Rights of Worksome, Client, End Customer, or any third party;

13.4.12. any income tax, employee national insurance contributions, and/or employer national insurance contributions that may be awarded against, claimed from or demanded from Worksome and/or the Client under any Tax Legislation arising out of or in connection with the performance of the Freelance Services by the Freelancer; and/or

13.4.13. any breach of DP Legislation, the contractual obligations relating to data protection, and or any additional data protection undertakings entered into by the Freelancer and or any Representative.

13.5. The Freelancer will be liable for the following types of Liability which will be regarded as direct and will be recoverable by Worksome, the Client, and/or any Contracting Party (as applicable):

13.5.1. any losses, costs, damages, expenses or other liabilities suffered or incurred by Worksome or the Client which arise out of or in connection with any systems failure or unplanned systems downtime where the same has been caused by or contributed to by the Freelancer and/or the loss of, corruption or damage to or failure to deliver Customer Data by the Freelancer; and/or

13.5.2. any regulatory losses, fines, claims by data subjects, expenses or other losses arising from a breach by the Freelancer of any Laws.

13.6. The Freelancer undertakes to maintain at its own cost an insurance policy to cover full liability in respect of any act, omission or default for which it may become liable in undertaking the Freelance Services or as a consequence of any indemnity or other obligation accepted by the Freelancer under any Agreement. The Freelancer shall take out and maintain those insurances policies, in accordance with the relevant limits, and terms of insurance required in the Booking Confirmation, or if no such limit is set out in the Booking Confirmation, the Freelancer shall maintain in force to cover fully its obligations and liabilities under an Agreement a professional indemnity insurance policy to a limit of no less than £1,000,000 per claim or series of connected claims, a public liability insurance policy to a limit of no less than £5,000,000 per claim or series of connected claims, and employers liability insurance policy (where required to be maintained by Law by the Freelancer) to a limit no less than the statutory limit (applicable from time to time). The Freelancer shall ensure that it maintains all insurances for the duration of any Booking and for a period of at least 3 years thereafter. All insurance certificates and other evidence must be uploaded onto the Platform upon request.

13.7. The Freelancer will not do or omit to do anything, which would destroy or impair the legal validity of the insurance policies and will notify Worksome immediately if any insurance policies are at risk of being cancelled, suspended and or ended. The Freelancer will be liable for any excesses or deductibles it agrees in respect of any policies and the same shall not be recoverable from Worksome or any Contracting Party. The Freelancer shall provide copies of its insurance certificate, premium receipt, and policy upon request via the Platform or otherwise upon request from the Contracting Party for audit purposes, whether requested during any Booking or within a period of 3 years thereafter.

14. Termination

14.1. Each Agreement shall terminate automatically upon the earlier of the Freelance Services and any Deliverables, having been cancelled in their entirety by the Client prior to the Freelancer accepting a Booking Confirmation, having been completed, delivered and accepted by the Client, or upon the estimated completion date having been reached as specified in the Booking Confirmation or upon any cap on Fees having been reached, whichever occurs the earlier, and subject always to earlier termination in accordance with this clause 14.

14.2. An Agreement may be terminated by the Contracting Party, the Freelancer, or the Client (on behalf of the Contracting Party) at any time on giving such written notice to the other parties, as required in the relevant Booking Confirmation or otherwise in accordance with this clause 14.

14.3. An Agreement will terminate automatically in the event that a Freelancer, Payroll Intermediary, and/or the Client de-register from the Platform during the term of any Agreement.

14.4. Without prejudice to any other rights under this clause, the Contracting Party may terminate an Agreement at any time without prior notice or liability prior to the commencement of Freelance Services (for any reason), or during the Agreement in the event that the Freelancer (including any Representative) has:

14.4.1. failed to provide Compliance Documentation required before the commencement of Freelance Services or within any other time period notified via the Platform;

14.4.2. failed to provide accurate and sufficient information, has provided false or fraudulent information, and/or has negligently or recklessly provided inaccurate information in response to a request from Worksome made arising under these Terms or any Agreement and in particular in relation to information requested with regard to whether the PSC Freelancer and or the Representative are working under (or subject to the right of) supervision, direction or control of any person in the provision of the Freelance Services;

14.4.3. failed to perform the Freelance Services and or deliver the Deliverables in accordance with the requirements of the Standard Terms or otherwise failed to undertake or complete any Rectification under the Agreement;

14.4.4. committed serious and or persistent breaches of any Agreement (including any warranty, representation and or undertaking in these Terms);

14.4.5. not met the requirements of the Standard Terms;

14.4.6. committed serious and/or persistent breaches of health and safety, IT and or security rules and regulations applicable to the Client (in the sole opinion of the Client);

14.4.7. committed (or is suspected of) fraud, dishonesty, unprofessional behaviour, or other wrongful, improper, or unlawful conduct during the Booking (in the sole opinion of the Client);

14.4.8. by their act, error, and or omission breached any Laws;

14.4.9. acted in Default;

14.4.10. has failed to comply with the requirements for disclosure or compliance with any warranty in the Standard Terms and or clause 15.1.3 and or deliver up evidence to demonstrate its compliance within 48 hours of being requested to do so by the Contracting Party; and/or

14.4.11. acted in any other manner leading to the Client and or the End Customer requesting the termination an Agreement due to their dissatisfaction (in their sole opinion) with the Freelance Services and/or any Representative.

14.5. Without prejudice to any other rights under this clause, a Contracting Party may terminate an Agreement without further liability on giving immediate notice to the Outside IR35 Freelancer or Sole Freelancer if the Contracting Party knows or suspects that the Outside IR35 Freelancer, the Sole Freelancer and or any Representative are performing the Freelance Services under (or subject to the right of) supervision, direction or control of any person in breach of the Agreement.

14.6. Without prejudice to any other rights of termination either party may have under this clause 14 the Contracting Party may at any time request the immediate removal of Representatives from the Freelance Services if the Client or the Contracting Party is dissatisfied with the professional conduct of any Representative. If the Contracting Party requires the removal of any Representatives, the Freelancer shall replace the Representatives (as may be required to ensure the Freelancer continues to meet its obligations under the relevant Agreement). If the Freelancer is unable to replace the removed Representative within a period of 7 days, the Contracting Party shall be entitled to terminate the Agreement with immediate effect. Worksome will not be liable to the Freelancer for any such termination other than in accordance with clause 14.7.

14.7. Should an Agreement be terminated for any reason under clause 14.4 within the first 48 hours of the provision of Freelance Services, the Contracting Party will not be liable for or required to pay the Freelancer any Booking Fees for the Freelance Services performed under the Agreement and (b) thereafter, the Freelancer shall (i) if the Freelance Services are payable on a time and materials basis be entitled to payment for all Freelance Services satisfactorily delivered and accepted by the Client to the date of termination and (ii) if the Freelance Services are payable on completion of Deliverables and/or Milestones, the Freelancer may be entitled to part payment for the same where termination for convenience (not for cause) occurs part way through their delivery and in respect of which the Client and Freelancer shall discuss through the Contracting Party a resolution in good faith to agree a payment for the partial delivery of such Deliverables and or Milestones; all potential payments being subject always to any Dispute raised by the Client in accordance with the process set out in these Terms and the Freelancer's compliance with the requirements of clause 11 of these Terms.

14.8. The Freelancer acknowledges that the Client is not obliged to request the Freelancer continue to deliver the Freelance Services and or any Deliverables during any such notice period but if the Client does require assistance with and support on termination to handover the Freelance Services and Deliverables, the Freelancer and the Client shall use reasonable endeavours to agree the Termination Services. The Freelancer shall only be entitled to invoice Booking Fees during any period of notice for Termination Services, which have been agreed with the Client and such Termination Services have been delivered and accepted by the Client, and the Freelancer has complied with the requirements of clause 11. The Freelancer will not be entitled to any payment in lieu of the provision of the Freelance Services or Termination Services during any notice period.

14.9. Either party may terminate the Booking in the event that the other party:

14.9.1. is dissolved, ceases to conduct substantially all of its business, is or becomes insolvent or is declared insolvent, or convenes a meeting or makes or proposes to make any arrangement or composition with its creditors; and/or

14.9.2. has an administrator, administrative receiver, liquidator, receiver, trustee or similar appointed over their assets.

14.10. Without prejudice to any other rights under this clause, the Freelancer acknowledges that the continuation of any Agreement is subject to and conditional upon the continuation of the contract entered into between the Contracting Party and the Client. In the event that the contract between the Contracting Party and the Client is terminated for any reason (including but not limited to the Client's failure to make payment of or likely failure to make payment of any of its obligations to the Contracting Party) the Agreement will cease with immediate effect without liability to the Freelancer (save for payment for Freelance Services performed by the Freelancer up to the date of termination of the Agreement, such always to the Freelancer's compliance with clause 11 and subject to clause 14.11 below).

14.11. Notwithstanding anything to the contrary in these Terms or in any Agreement, if an Agreement is terminated by the Contracting Party under clause 14.9, or clause 14.10 due to the Client's failure to make payment of or likely failure to make payment of any of its obligations to the Contracting Party, or due to the Contracting Party receiving notice that the Client is dissolved, ceases to conduct substantially all of its business, is or becomes insolvent or is declared insolvent, or convenes a meeting or makes or proposes to make any arrangement or composition with its creditors and/or has an administrator, administrative receiver, liquidator, receiver, trustee or similar appointed over their assets, the Contracting Party will only be liable for payment for Freelance Services performed up to the date of termination of the Agreement and to the extent that the Client has made payment in respect of such Services to the Contracting Party.

14.12. These Terms will remain in force for as long as the Freelancer is registered with the Platform and for such period during which any Agreement remains in force subsequent to the Freelancer de-registering from the Platform. Termination of these Terms will not affect any existing Agreement which will continue in full force and effect until its natural expiry under a Booking Confirmation or earlier termination in accordance with the termination provisions set out in this clause.

15. Obligations on Termination

15.1. Upon completion of the Booking, earlier termination, or at any time when requested by the Client, the End Customer or Worksome (as appropriate), the Freelancer will:

15.1.1. return or deliver up all property and items provided to the Freelancer and/or the Representative in connection with or for the purpose of the Booking including any equipment, materials, documents, swipe cards or ID cards;

15.1.2. return all Confidential Information in the Freelancer's possession or otherwise under the Freelancer's control and will irretrievably delete any Confidential Information stored on any media and all matter derived from such Confidential Information where held by the Freelancer outside of the premises of the Client;

15.1.3. provide any written confirmation or statement required by the Client confirming the Freelancer has complied with its obligations under this clause.

16. Status of and Tax implications for a Freelancer

PSC Freelancer (excluding any Payroll Intermediary) and Sole Freelancer

16.1. The parties agree that these Terms and any subsequent agreed Agreement reflect a contract for services between independent businesses and nothing in these Terms or any Agreement will render the Freelancer or any Representative or Substitute an employee, worker, agent or partner of Worksome or the Client. The Freelancer will not (and will procure any Representative and/or any Substitute will not) hold themselves out as such. The responsibility for the direction, supervision and control of the Representative and/or any Substitute in the provision of the Freelance Services rests with the Freelancer and no other party, unless otherwise specified in the Booking Confirmation.

16.2. The Freelancer shall therefore ensure that it does not allow itself nor any of its Representatives or Substitutes to be treated as an employee by the Client or allow any integration of such persons into the Client's workforce, or otherwise allow anything, act in any manner, or omit to do anything that may imply or otherwise create an employee relationship between any Freelancer, any Representative, and/or any Substitute and the Client. The Freelancer shall comply with any working practice requirements applicable to a Booking where set out in or annexed to a Booking Confirmation.

16.3. The Freelancer agrees that Jobs obtained through the Platform are outside of the scope of the Conduct Regulations on the basis that the Freelancer is not performing services under the temporary supervision, direction and or control of a Client, and Worksome is not an employment business and provides access to the Platform to the Freelancer to find and secure its own Jobs with Clients, and Worksome provides an administrative service to the Client to assist the Client to facilitate the administration of the Jobs via the Platform. The Freelancer agrees that on the basis it is in business on its own account and any Agreement entered into pursuant to these Terms is outside of the scope of AWR (except if a Freelancer is an AWR Freelancer).

16.4. The Freelancer warrants, represents and undertakes that:

16.4.1. it will be solely responsible for all Freelancer Payments arising out of or in connection with any Booking or Agreement, and in particular for all taxes, national insurance contributions, and other contributions that may become due and payable to HMRC (or any other relevant tax authority where Freelancer is domiciled outside of the United Kingdom and the Booking is performed outside of the United Kingdom);

16.4.2. it is properly incorporated in the UK as a limited liability company and its business operations are based wholly in the United Kingdom and will remain so during the Booking (unless the Freelancer is domiciled outside of the United Kingdom, and in which case this warranty shall be construed according to such jurisdiction);

16.4.3. it is a genuine and independent business in the performance of the Freelance Services for the Client (including any End Customer) and AWR does not apply to the Booking and this will remain so during the Booking (except where the Freelancer is an AWR Freelancer); and

16.4.4. it will only utilise a Substitute or any sub-contractor for the Freelance Services in accordance with the Standard Terms and clause 16.7 (such contractual entitlement not applicable to any AWR Freelancer).

16.5. The Parties agree that nothing in any Agreement is intended to imply an employment relationship (which includes the implication of worker status) between any Freelancer or Representative or Substitute and Worksome; or any PSC Freelancer or Representative or Substitute and the Client and accordingly the Freelancer shall indemnify and keep indemnified Worksome and the Client in full against any Liabilities that Worksome and/or the Client incur or suffer including any income tax liabilities and/or national insurance contribution liabilities, and any redundancy payments or protective awards, relating to or arising out of or in connection with:

16.5.1. the employment or alleged employment of any Representatives or Substitutes;

16.5.2. engagement of any Representative or Substitute as a worker or agency worker;

16.5.3. any claims and or demands made by any Representative and/or any Substitute in respect of the termination of any Agreement;

16.5.4. the Freelancer's failures to pay any Representatives or Substitutes any sums properly due;

16.5.5. any claim by a trade union, staff association or staff body in respect of any or all of the Representatives and/or Substitutes arising out of or in connection with the Freelancer's failure to comply with its legal obligations; or

16.5.6. any claim or demand made by any Freelancer's Representative and/or Substitute under any Laws relating to their employment or worker status and or other arising out of or in connection with any Agreement.

16.6. Neither the Freelancer nor any Representatives nor any Substitutes are or will be employees or agents of Worksome, the Client or any other person associated with or connected to any Agreement excluding any Payroll Intermediary (**Relevant Parties**) and therefore will not be entitled to any benefits, entitlements, or access to facilities that employees of the Relevant Parties have entitled to. In particular the Parties agree that the Freelancer and its Representatives and/or any Substitutes will not be entitled to any of the following from any Relevant Parties under any Agreement:

16.6.1. payment for absences, whether holiday, special absence, statutory absences and/or sickness absence;

16.6.2. benefit of the application of any grievance procedure, disciplinary procedure, and or performance appraisal procedure applicable to employees of any Relevant Parties;

16.6.3. benefit of any pension scheme and or company benefits (whether statutory entitlements or otherwise) applicable to employees of any Relevant Parties; and

16.6.4. use of or access to any staff facilities on any premises of any Relevant Parties (unless the Freelancer is an AWR Freelancer).

16.7. The Freelancer may sub-contract part or all of the Freelance Services and Deliverables to any sub-contractor provided that such sub-contractor is required to commit to contractual terms which are materially the same as those set out in the Agreement, is suitably experienced and qualified to deliver the Freelance Services and/or any Deliverables pursuant to the Agreement, and provided the conditions of the Standard Terms are satisfied in respect of such sub-contractor. The relevant Freelancer will assume sole responsibility for making payments to the sub-contractor. The sub-contractor will have no contractual, financial or legal relationship with the Contracting Party or the Client. Where the Freelancer has sub-contracted part or all of the Services and any Deliverables to any sub-contractor, the Freelancer shall remain primarily liable for and responsible for the acts and omissions of such sub-contractors as fully as if they were acts and omissions of the Freelancer (or any of its Representatives) and the Freelancer hereby indemnifies and shall keep Indemnified Parties indemnified for and against any Liability incurred whether directly or indirectly arising out of or in connection with the Default of any sub-contractor.

16.8. The Freelancer warrants, represents and undertakes that (for the purposes of compliance with Tax Legislation):

16.8.1. Any person it utilises as Representatives however arising (and whether utilised directly or indirectly via any sub-contractor) is not and will not be engaged by the Freelancer or any sub-contractor as a sole trader (i.e. an individual whom receives gross payments for services performed) or as a partner through any partnership (other than with the prior written consent of Worksome, which may be unreasonably withheld);

16.8.2. It will continue to pay all taxes due to HMRC and will not utilise or otherwise be engaged in 'disguised employment' practices when delivering Services under any Booking Confirmation;

16.8.3. It will not operate any travel and or subsistence policy and procedure in breach of any Tax Legislation or other Laws;

16.8.4. It is not a managed service company for the purposes of MSC Legislation.

16.9. The Sole Freelancer warrants, represents and undertakes that s/he is properly incorporated in the UK as a self-employed individual and has obtained a unique tax reference number for self-assessment purpose to the extent that its business operations are based wholly in the United Kingdom and will remain so during the Booking (unless the Sole Freelancer is domiciled outside of the United Kingdom, and in which case this warranty shall be construed according to such jurisdiction).

16.10. The Freelancer undertakes, warrants and represents that neither it nor any Freelancer is the subject of any tax investigation and or litigation regarding tax non-compliance.

16.11. The Contracting Party may request at any time, and the Freelancer shall provide information as required by the Contracting Party which demonstrates how the Freelancer complies with clause 16.8 to clause 16.10 or why certain clauses do not apply to it. Any request for information will specify the information which the Freelancer must provide and the period within which that information must be provided.

PSC Freelancer - Current Off-Payroll Rules

16.12. For Bookings that are not with Public Sector Clients and/or Large and Medium organisations, as per section 382 of the Companies Act 2006, the PSC Freelancer undertakes, warrants and represents that to the best of its knowledge and belief IR35 Legislation does not apply to its Representatives and that IR35 Legislation does not apply to the provision of the Freelance Services under an Agreement. Consequently, the PSC Freelancer is responsible for making its own determination as to its status under IR35 Legislation at its own cost, and whether or not the Representative is operating Outside IR35 at the outset of any Booking and shall undertake any re-assessment of its Representatives status required by Worksome at its own cost. The PSC Freelancer will be required to provide evidence in writing of its own determination prior to the commencement of any Booking or within a period of 7 days following a written request from Worksome.

16.13. For Bookings that are with Public Sector Clients and/or Large and Medium organisations, as per section 382 of the Companies Act 2006, under Current Off-Payroll Rules, the PSC Freelancer accepts the Client has the responsibility for and has determined a Booking to be outside of the Off-payroll Rules (Outside IR35). The PSC Freelancer accepts that it will be required to provide information to the Client and Worksome to assist the Client in reaching its determination. The PSC Freelancer will provide all assistance with and disclose all such information that is requested by the Client and/or Worksome in order for the Client to reach its determination, re-assess such status during the Booking, and as required to assist the Client and/or Worksome in auditing the same within a period of 6 years after the termination of the relevant Booking.

16.14. If the Contracting Party elects to administer an outsourced IR35 compliance service (**IR35 Solution**), the PSC Freelancer and the Representative shall comply with all requests and requirements of the Contracting Party to facilitate the assessment of any status determination for Off-Payroll Rules, facilitate the re-assessment of such status throughout the Booking and upon completion at intervals determined by the Contracting Party through the IR35 Solution, and to ensure that all information relating to any Booking is kept up to date and the Contracting Party is notified of any changes in the Booking or any working practices agreed pursuant to a Booking Confirmation. The PSC Freelancer shall ensure that it and any Representative provide all assistance and co-operation to the Contracting Party in the event that the Contracting Party, the Client, or Worksome are required to respond to any HMRC enquiry during the Booking or during a period of 6 years from the end of such Booking and shall make available all such persons as may be required to attend any enquiry meetings and/or any court or tribunal in respect of any formal challenge by HMRC to the status determination concluded through the IR35 Solution.

16.15. The PSC Freelancer acknowledges and agrees that should any determination for a Booking for a Public Sector Client not be determined to be Outside IR35, the PSC Freelancer will be required to engage with the Contracting Party as a PAYE Freelancer or Payroll Freelancer for the purpose of the Booking concerned.

16.16. Worksome reserves the right to update these Terms to incorporate additional terms and conditions for the New Off-Payroll Rules on giving notice to any Freelancer and or Client registered as a user on the Platform of such changes, and which shall apply to all Booking Confirmations raised via the Platform and entered into following receipt of such notice.

PSC Freelancer – Payroll Intermediary

16.17. During any Agreement, the PSC Freelancer warrants, represents and undertakes that the Payroll Freelancer will accept the direction, supervision, and or control of the Client, and shall observe all relevant rules and regulations of the Client's premises (and where applicable any End Customer premises (including the normal hours of work at the premises) to which attention has been drawn or which the Payroll Freelancer might reasonably be expected to ascertain or ought to be aware of.

16.18. The PSC Freelancer warrants, represents and undertakes that the Payroll Freelancer obeys all lawful and reasonable instructions of any supervisor or line manager of the Client and report to such person as required from time to time.

16.19. The PSC Freelancer accepts that it may only utilise the Payroll Freelancer named in the Booking Confirmation to deliver the Freelance Services, unless otherwise agreed in writing by the Contracting Party and the Client and may not provide a Substitute or any sub-contractor unless with the prior written agreement of the Contracting Party.

16.20. The PSC Freelancer shall only employ or engage and supply a Payroll Freelancer as an employee or statutory worker and in which case the PSC Freelancer warrants that it will employ a Payroll Freelancer and shall pay full tax and national insurance contributions on the Booking Fees it receives from the Contracting Party after the deduction of any Payroll Intermediary administration fee, business expenses, travel and/or subsistence expenses claimed (where applicable). Upon request from the Contracting Party, the PSC Freelancer shall provide evidence of its compliance with HMRC with respect to the manner of engagement of a Payroll Freelancer, any required registrations and compliance with legislation.

16.21. The PSC Freelancer shall use and apply good HR administration and practice with respect to the employment, management and termination of a Payroll Freelancer. Upon request from the Contracting Party, the PSC Freelancer shall provide copies of the Employment Contract, its staff handbook, and any other employee/er policies and procedures applicable to the Payroll Freelancer.

16.22. Should the PSC Freelancer inform the Contracting Party that the Payroll Freelancer employed will not be subject to the supervision, direction, and/or control of the Client or any third party whilst performing the Booking and the PSC Freelancer requests that clause 16.16 be removed for the Booking (as applicable), the Contracting Party shall only vary the same to the extent that it has received written evidence from the PSC Freelancer supporting its request to the Contracting Party and provided that the Contracting Party accepts such written evidence. In any event, the PSC Freelancer shall indemnify and keep indemnified the Contracting Party from and against any Losses arising from the Contracting Party accepting the PSC Freelancer request.

16.23. If the PSC Freelancer requests the Contracting Party to seek information from the Client or any third party in relation to the PSC Freelancer's request under clause 16.21, the Contracting Party will action such request on the PSC Freelancer's behalf but only on the understanding and acceptance that Contracting Party is merely acting as an agent for the PSC Freelancer in making any such request and passing on the Client's response to the PSC Freelancer and Contracting Party will only forward on requests in the format provided by the PSC Freelancer. Contracting Party reserves the right to charge an administrative fee in respect of any such request, the details of which shall be available upon request. Contracting Party shall not be liable for the accuracy, truth or genuineness of any information passed on by Contracting Party, from the Client or any third party, to the PSC Freelancer. The PSC Freelancer hereby indemnifies Contracting Party and keeps the Contracting Party indemnified in respect of, and holds Contracting Party harmless from and against, any Losses arising from any allegation or claim by the PSC Freelancer or any other party that Contracting Party has provided inaccurate, fraudulent, or misleading information to the PSC Freelancer in respect of any such request.

16.24. The PSC Freelancer warrants that the Payroll Freelancer will receive the benefit of any additional rights that the PSC Freelancer becomes entitled to under a notice of variation to a Booking Confirmation issued by Contracting Party including pursuant to AWR.

16.25. The PSC Freelancer agrees that it will notify the Contracting Party of any entitlements that it believes the Payroll Freelancer is entitled to pursuant to AWR prior to the end of the Qualifying Period and shall ensure that it makes all requests and enquiries in writing of the Contracting Party on a timely basis to determine whether it requires any uplift in or variation to any Booking Fees or other terms of the Agreement to ensure the Payroll Freelancer receives all entitlements that s/he may be entitled to pursuant to AWR.

16.26. The PSC Freelancer will not engage and supply a Payroll Freelancer upon any contract which purports to comply with Regulation 10 of the AWR or otherwise seeks to circumvent or otherwise avoid the application of the AWR.

PAYE Freelancer

16.27. The PAYE Freelancer understands and acknowledges that any Agreement created via the Platform will be an individual contract for services between the Contracting Party and the PAYE Freelancer and the PAYE Freelancer is engaged as a statutory worker and is an AWR Freelancer and is entitled to the statutory rights and protections afforded as a consequence of such status. The PAYE Freelancer understands and acknowledges that s/he is not and will not be an employee of the Contracting Party or the Client and therefore will have no entitlement to any unfair dismissal rights, redundancy payments, nor any other entitlements in law reserved for employees only and whether against the Contracting Party or the Client.

16.28. The PAYE Freelancer shall not be entitled to any benefits other than those stated in these Terms and determined by Applicable Laws.

16.29. The PAYE Freelancer is entitled to raise any complaint or issue arising from its contract for services with the Contracting Party and the same should be raised through the Platform, and the Contracting Party will in the first instance investigate such complaint or issues raised. For the avoidance of doubt, the Contracting Party's disciplinary and or grievance procedures for its own employees do not apply to any PAYE Freelancer under an Agreement however all complaints and issues will be investigated fully and responded to by the Contracting Party.

16.30. During any Agreement, the PAYE Freelancer warrants, represents and undertakes to; accept the direction, supervision, and or control of the Client, and shall observe all relevant rules and regulations of the Client's premises (and where applicable any End Customer premises (including the normal hours of work at the premises) to which attention has been drawn or which the PAYE Freelancer might reasonably be expected to ascertain or ought to be aware of and to obey all lawful and reasonable instructions of any supervisor or line manager of the Client and report to such person as required from time to time.

16.31. The PAYE Freelancer may not substitute himself or herself during any Booking Confirmation, unless otherwise agreed in writing by the Contracting Party and the Client and subject to any conditions required of the Contracting Party and the Client.

17. Notices

All notices which are required to be given in accordance with these Terms in relation to any Agreement must be in writing and delivered by email through the Platform. Any such notice will be deemed to have been served by email, when that email is sent. Where no email address has been provided by a recipient any such notice must be served in writing by other authorised means described in this clause to the registered office of the recipient (as applicable) or if not applicable to the address of the recipient set out in the Booking Confirmation.

18. General

18.1. These Terms and any Agreement are governed by and will be construed in accordance with the laws of England and is subject to the exclusive jurisdiction of the English courts (other than for enforcement proceedings, for which the English courts will have non-exclusive jurisdiction).

18.2. These Terms will be deemed to have been accepted by the Freelancer either upon the Freelancer (or any Representative of a PSC Freelancer) registering with the Platform, upon the Freelancer confirming a Booking Confirmation, upon the Freelancer receiving a Booking Confirmation and subsequently commencing provision of the Freelance Services, or upon submitting a Time Report for Freelance Services performed or receiving payment for the Freelance Services, whichever event occurs the earlier.

18.3. In the event of any conflict between the Terms and a Booking Confirmation, the Terms will prevail to the extent of the conflict unless the Booking Confirmation expressly waives this provision.

18.4. Each provision of these Terms and any Agreement (as defined by punctuation) is separate, distinct and severable. If any of the provisions of these terms or any Agreement are determined by the English Courts to be unenforceable, to any extent, such provision may be modified or severed from the remaining Terms and/or Agreement to give meaning to the intention of the parties, and the remaining provisions including any such modified provisions will continue in force.

18.5. The Contracting Party may vary the Terms or any Booking Confirmation on giving the Freelancer written notice (which will include the detail of the variation and the date upon which the variation takes effect) in order to comply with any change in, additional or new obligations imposed (and whether applicable retrospectively) by statute or by virtue of any other legal obligations published.

18.6. Save as provided for in this clause, the Contracts (Rights of Third Parties) Act 1999 will not apply to these Terms or any Agreement and no person or entity other than the Freelancer and the Contracting Party will have any rights under these Terms or any Agreement. Worksome, the Client, and any End Customer identified in a Booking Confirmation (**third party**) will have the benefit of those provisions of these Terms and any Agreement that expressly confer such benefit, or which are intended to be for the benefit of or are enforceable by such third party, irrespective of the fact that such third party may not be a Contracting Party to any Agreement concluded. Notwithstanding that any term of the Terms or any Agreement may be or become enforceable by a person who is not a party to it, the Terms or any Agreement may be rescinded, varied, amended or modified or terminated without the consent of any such third party.

18.7. The Freelancer may assign, transfer, charge or otherwise encumber, create any trust over, or deal in any manner with these Terms or any Agreement or any right, benefit, or interest under each of them but only with the prior written consent of the Contracting Party.

18.8. The failure of the Contracting Party to exercise or enforce any right conferred upon it under these Terms or any Agreement shall not be deemed to be a waiver of any such right or operate so as to bar the enforcement thereof at any time.

18.9. Notwithstanding the provisions of the Limitation Act 1980, the Freelancer agrees that it will only have a period of 1 year from the end of an Agreement to bring any claims arising under the terms of such Agreement. No contractual claim arising outside of this period will be valid or enforceable on the Contracting Party.

18.10. The provisions of these Terms including Schedule 1 will survive the termination of any Agreement whether either are expressed to survive its termination or from their nature or context it is contemplated that they are to survive such termination of an Agreement.

SCHEDULE 1 PART A (DEFINITIONS)

Agency Tax Legislation	Chapter 7 of Part 2 of the Income Tax (Earnings and Pensions) Act 2003 and Social Security Contributions (Intermediaries) Regulations 2000;
Agreement	the contract agreed by the Freelancer for a Booking comprising the Booking Confirmation, these Terms, any Supplemental Terms, and incorporating the Standard Terms;
Applicable Law	any Laws which affect the subject-matter of and operation of these Terms, including but not limited to any Laws affecting the services of the Platform and or any the provision of Freelance Services under any Booking;
Auto-Enrolment Scheme	means the Worksome or Payroll Intermediary pension scheme which is a qualifying scheme under the Pensions Act 2008 ("PA");

AWR	the Agency Workers Regulations 2010;
AWR Freelancer	a PAYE Freelancer or Payroll Freelancer and whom are “agency workers” for the purposes of AWR;
Booking	any Job accepted by the Freelancer via the Platform;
Booking Confirmation	the document which confirms in writing the Booking Details agreed by the Freelancer via the Platform together with the Booking Fees and any other terms and conditions relevant to the Booking;
Booking Details	the Freelance Services, Deliverables and any other outcomes agreed to be delivered to the Client and which includes any agreed Milestones and timetable for completion of the same to the Client as set out in the Booking Confirmation;
Booking Fees	<u>For PSC Freelancer and Sole Freelancer</u> , the gross fee for the Freelance Services and any Deliverables as set out in a Booking Confirmation, which will be an all-inclusive fee rate including all costs and expenses, and shall include Freelancer Payments (unless otherwise specified) for PSC Freelancers and Sole Freelancers, and such fee is exclusive of VAT (which shall be added as applicable); <u>For PAYE Freelancer and Payroll Freelancer</u> ; the gross fee for the Freelance Services at the fee rate (to be no less than the National Minimum Wage) set out in the Booking Confirmation, inclusive of all costs, expenses and fees (unless otherwise specified), and such fee is subject to the Tax Deductions;
Booking Terms	these booking terms and conditions for Freelancers applicable to all Bookings made through the Platform and which includes Schedule 1, which will govern any Booking Confirmation entered into between the parties;
Charge Rate	the total charge rate that Worksome invoices the Client for in respect of the Freelance Services, and which includes the services fee of Worksome;
Client	the company or other person registered with the Platform seeking the fulfilment of requirements for Freelance Services (together with any subsidiary or associate of the company as defined under the Companies Act 2006) and who requests a Booking from a Freelancer and who is the recipient of the Freelance Services and Deliverables set out in the Booking Confirmation;
Client Agreement	the bespoke agreement that a Client may require a Freelancer to enter into for any Booking with the Client when it is acting as the Contracting Party to a Booking and which shall be set out in Schedule 2 of these Terms;
Client Data	personal data for which the Client and or the End Customer is a controller under GDPR;
Client Group	any subsidiary, holding company and/or associate person of the Client as defined under the Companies Act 2006 and any reference to Group Company will be construed the same;
Compliance Documentation	all information and documentation requested via the Platform including to meet; Worksome’s vetting checks for registration of a Freelancer to the Platform, to comply with the screening requirements of the Client for the Booking including any security clearance requirements (as applicable), statutory obligations and duties arising under Tax Legislation, to comply with all other Applicable Laws and all other Client specific requirements for the Booking and which shall include corporate (including company incorporation) information (for PSC Freelancer), business bank account details (for PSC Freelancer and Sole Freelancer, bank account details (for PAYE Freelancer) national insurance details of the PAYE Freelancer and any relevant Representatives, personal data relating to the PAYE Freelancer, Sole Freelancer, and or any Representatives (for a PSC Freelancer), evidence of a Freelancer’s and any Representative’s right to work, the provision of work or business references for any Freelancer and other tax information (including VAT registration as applicable);
Conduct Regulations	the Conduct of Employment Agencies and Employment Businesses Regulations 2003;
Confidential Information	any and all confidential commercial, financial, marketing, technical or other information or data of whatever nature relating to the Client and/or any End Customer and their business or affairs (including but not limited to data, records, reports, agreements, research and development, manufacturing, marketing strategies and tactics, production or design secrets, specifications, know-how, trade secrets, Inventions and other information concerning the Booking) in any form or medium, whether in writing, orally or by any other means, together with any reproductions of such information in any form or medium or any part(s) of such information;

Contracting Party	the party whom the Freelancer will contract with to deliver the Freelance Services to the Client pursuant to a Booking, and whom shall either be the Client, Worksome, or a Payroll Intermediary as agreed in the Booking Confirmation;
Current Off-Payroll Rules	all income tax and social security contributions legislation affecting worker services provided to a public authority through intermediaries and including Chapter 8 of Part 2 of ITEPA 2003 and Chapter 10 of Part 2 of ITEPA 2003;
DP Legislation	the General Data Protection Regulations (2016/679) (GDPR), the Data Protection Act 2018, as amended and all applicable laws and regulations relating to the processing of personal data (defined in GDPR) and privacy, including where applicable the guidance and codes of practice issued by the UK supervisory regulatory body;
Default	any breach of the obligations of the Freelancer (including but not limited to fundamental breach or breach of a fundamental term) or any other default, act, error, omission, fraud, negligence or negligent statement of the Freelancer and/or the Representative, and irrespective of whether the same was intentional or not, in connection with or in relation to the subject-matter of these Terms and or any Agreement;
Deliverables	any specific output, materials, software, and/or other work items to be delivered by the Freelancer in the performance of the Freelance Services described in the Booking Confirmation;
Eligible Jobholder	a Jobholder (defined under the PA) who is aged at least 22 but has not reached state pension age, and whose Earnings (defined under the PA) exceed the earnings trigger in a relevant Pay Reference Period (defined pursuant to the PA and applicable secondary legislation);
Employment Contract	the specific terms and conditions of employment issued by the Payroll Intermediary and which the Payroll Freelancer shall enter into to perform a Booking pursuant to a Booking Confirmation where the Payroll Intermediary is the Contracting Party;
End Customer	the customer of the Client for whom the Booking is performed or whom the PSC Freelancer otherwise has direct dealings with as set out in the Booking Confirmation as applicable;
Force Majeure	any act of God, flood, earthquake, windstorm or other natural disaster; war, threat of or preparation for war, armed conflict, terrorist attack, civil war, civil commotion or riots; nuclear, chemical or biological contamination or sonic boom; fire, explosion (other than in each case one caused by a breach of contract by, or assistance of, the party seeking to rely on this clause or companies in the same group as such party) or accidental damage; extreme adverse weather conditions; interruption or failure of utility service, including but not limited to electric power, gas or water; and collapse of building structures, failure of plant machinery, machinery, computers or vehicles or any other event which is beyond a party's reasonable control;
Freelancer Payments	<u>for any PSC Freelancer:</u> any PAYE income tax and national insurance (or social security) contributions payable in respect of any Representative, employers national insurance, all statutory entitlements (such as statutory holiday pay and statutory sick pay), all pension auto-enrolment entitlements, other contractual entitlements due to the Representative under their contract with the PSC Freelancer, and any and all other taxes and deductions that may be determined due by the PSC Freelancer in respect of the Representative for any Booking or due by the PSC Freelancer arising in respect of the Freelance Services performed under a Booking, and whether arising under any Tax Legislation or otherwise; and all of the above are and will remain the liability of the PSC Freelancer and will not be or become the liability of or responsibility of Worksome or the Client; <u>for any Sole Freelancer:</u> any PAYE income tax and national insurance (or social security) contributions payable in respect of the Sole Freelancer, any statutory entitlements of a sole trader, and any and all other taxes and deductions that may be determined due in respect of Sole Freelancer for any Booking or arising in respect of the Freelance Services performed and whether arising under any Tax Legislation or otherwise; and all of the above are and will remain the liability of the Sole Freelancer and will not be or become the liability of or responsibility of Worksome or the Client;
Freelance Services	the consultancy and/or project services to be performed by the Freelancer for a Booking set out in a Booking Confirmation;

Freelancer	any person (including any limited company) who has registered with the Platform and who accepts a Booking whether as a PAYE Freelancer, Payroll Freelancer, as a PSC Freelancer (where the person has authority to act on behalf of the PSC Freelancer) or Sole Freelancer to perform the Freelance Services and any Deliverables pursuant to a Booking Confirmation;
Freelancer Equipment	the tools and equipment utilised by the Freelancer for the Freelance Services (excluding any items of personal protective equipment which will be provided by the Client unless otherwise agreed under a Booking Confirmation);
Frequency	the frequency of invoicing as specified in a Booking Confirmation;
Industry Standards	the exercise of a degree of skill, diligence, and foresight that would reasonably and ordinarily be expected from a highly skilled and experienced person engaged to perform services which are the same or similar to the Freelance Services;
Intellectual Property Rights	patents, rights to inventions, copyright and related rights, moral rights, trademarks, trade names and domain names, rights in get-up, rights in goodwill or to sue for passing off, rights in designs, rights in computer software, database rights, rights in confidential information (including know-how and trade secrets) and any other intellectual property rights, in each case whether registered or unregistered and including all applications (or rights to apply) for, and renewals or extensions of, such rights and all similar or equivalent rights or forms of protection which may now or in the future subsist in any part of the world;
Invention	any invention, idea, discovery, development, improvement or innovation made by the Freelancer and/or any Representative during the Booking, whether or not patentable or capable of registration, and whether or not recorded in any medium;
IR35 Legislation	Chapter 8 of Part 2 of ITEPA 2003 and Social Security Contributions (Intermediaries) Regulations 2000 which applies under Current Off-Payroll Rules and where the Client is not a Public Sector Client and which also applies under New Off-Payroll Rules where the Client under a Booking is a small company (excluding any Public Sector Client) under the small companies exemption set out in the New Off-Payroll Rules;
ITEPA 2003	the Income Tax (Earnings and Pensions) Act 2003;
Job	(i) any assignment, project or job offered by the Client to the Freelancers by use of the Services and including any renewal or extension of the same (" Posted Job "), or (ii) any assignment, project or job of the same type as a Posted Job which is established between the Client and the Freelancer following a prior Dialogue via the Platform (" Subsequent Job ").
Laws	any applicable Act of Parliament, subordinate legislation within the meaning of Section 21(1) of the Interpretation Act 1978, exercise of the royal prerogative, enforceable community right within the meaning of Section 2 of the European Communities Act 1972, regulatory policy, guidance or industry code, judgment of a relevant court of law, or directives or requirements of any government department and regulatory, statutory and other entities, committees, ombudsmen and bodies which, whether under statute, rules, regulations, codes of practice or otherwise, are entitled to regulate, investigate, or influence matters relating to or arising out of or in connection with these Terms and/or any Agreement;
Leave Year	means the period during which the PAYE Freelancer or Payroll Freelancer accrues and may take statutory leave commencing on the date that the PAYE Freelancer or Payroll Freelancer commences a Booking (or series of Jobs);
Liability	any loss, damage, liability, demand, claim, proceedings, judgement, settlement, fine, interest, penalty, award, order, cost, expenses (including any economic loss or other loss of profits, business or goodwill, all reasonable management time, legal disbursements and costs of investigation, litigation, settlement, judgement, and other professional cost and expense), death and/or personal injury and "Liabilities" will be construed accordingly;
Location	the agreed place or premises where the Freelance Services will be performed set out in the Booking Confirmation and whether in the United Kingdom or in any other jurisdiction;
Malicious Software	Any software program or code intended to destroy or cause any undesired effects. It could be introduced willfully, negligently or without the Freelancer having knowledge of its existence;
Milestone	a date by which a part or all of the Freelance Services and or any Deliverables are be completed as set out in the Booking Confirmation;

Minimum Wage	the minimum gross wage that a worker is entitled to be paid in the United Kingdom, and which shall either be the national minimum wage or national living wage, as applicable, and which is subject to Tax Deductions;
MSC Legislation	all legislation relating to Managed Service Companies: Chapter 9 of Part 2 ITEPA 2003 and Section 688A, Part 11 of ITEPA 2003;
New Off-Payroll Rules	changes to existing tax legislation affecting worker services through intermediaries provided to public authorities under Current Off-Payroll Rules and the introduction of new tax legislation affecting worker services to medium or large clients through intermediaries which shall incorporate amendments to Chapter 8 of Part 2 of ITEPA 2003 and Chapter 10 of Part 2 of ITEPA 2003 (or such other amendments to ITEPA 2003 as may replace, vary or expand its provisions including but not limited to the provisions for the Finance Act 2017 as currently published and the draft provisions of the Finance Bill 2020-21) and including but not limited to all other consequential amendments made to tax and social security legislation);
Off-Payroll Rules	the Current Off-Payroll Rules until such time as these are replaced by the New Off-Payroll Rules;
Outside IR35 Freelancer	a PSC Freelancer who is determined to be outside of the Off-Payroll Rules for the purposes of the Booking pursuant to a SDS and in respect of which the Booking Fees will be paid gross to the PSC Freelancer;
PAYE Freelancer	a Freelancer, who is an individual engaged by Worksome as a statutory worker on a PAYE basis under a contract for services to perform a Booking for the Client;
Payroll Freelancer	a Freelancer, who is an individual engaged by a Payroll Intermediary as an employee or statutory worker on a PAYE basis under a contract of services to perform a Booking for the Client;
Payroll Intermediary	the payroll company that engages a Payroll Freelancer to supply Freelance Services under a Booking and who is entitled to charge the Payroll Freelancer a fee for the provision of its services as a payroll company and who for the purposes of these Terms will be classified as a PSC Freelancer in the supply of the Freelance Services;
PSC Freelancer	a Freelancer, who is a limited company contractor engaged under a contract for services to perform the Freelance Services and or any Deliverables pursuant to a Booking Confirmation;
Personnel	any and all employees, staff, workers, agents and consultants of the Contracting Party and or Worksome;
Platform	the web-based online platform for both mobile and desktop application operated by Worksome and through which a Freelancer may bid for contract opportunities, agree Bookings with Clients, be engaged to supply the Freelance Services and any Deliverables pursuant a Booking Confirmation, and be paid the Booking Fees for a Booking;
Public Sector Client	any person who is a public authority for the purposes of section 3(1) of Part 1 of the Freedom of Information Act 2000 and the Off-Payroll Rules;
Qualifying Period	means 12 continuous calendar weeks during the whole or part of which the AWR Freelancer works temporarily for and under the supervision and direction of the Client in the same or a similar role as defined in Regulation 7 of the AWR;
Relevant Terms and Conditions	means terms and conditions relating to (a) pay, (b) the duration of working time; (c) night work; (d) rest periods and breaks; (e) vouchers which have monetary value; and (f) annual leave that are ordinarily included in the contracts of employees or workers (as appropriate) of the Client whether by collective agreement or otherwise and including (for the avoidance of doubt and without limitation) such terms and conditions that have become contractual by virtue of custom and practice, including copies of all relevant documentation;
Report Frequency	the frequency of the completion and submission of Time Reports required for the Booking set out in the Booking Confirmation;
Representative	the employees, workers, or officers or Payroll Freelancer (as applicable) of the PSC Freelancer and any agreed sub-contractor of the PSC Freelancer utilised in the performance of the Freelance Services (as specified in the Booking Confirmation) and including any Substitute from time to time;
Rest Period	any unpaid rest break that the PAYE Freelancer may be or any Representative or Payroll Freelancer of a PSC Freelancer is entitled to take during any period of the Booking in compliance with Working Time Regulations;

Sensitive Data	special categories of data defined in the GDPR;
Sole Freelancer	a Freelancer, who is an individual, engaged as an independent contractor on a contract for services, to deliver the Freelance Services and any Deliverables for a Booking;
Specific Terms	the specific additional terms and undertakings of the Client that the Freelancer is required enter into for a Booking and which shall be set out in Schedule 3 of these Terms;
Standard Terms	the Worksome standard terms and conditions for the provision of and receipt of services via the Platform at www.worksome.co.uk/terms/ (www.worksome.co.uk/terms/);
Substitute	Any employee, worker, or officer who replaces a Representative of the Outside IR35 Freelancer in accordance with the Standard Terms or any sub-contractor of the Outside IR35 Freelancer or Sole Freelancer in accordance with clause 19.7;
Tax Deductions	means any deductions which Worksome or any Payroll Intermediary is required by law to make in respect of any PAYE Freelancer or Payroll Freelancer (respectively);
Tax Legislation	all income tax and social security contributions legislation, including but not limited to the ITEPA 2003, the Social Security Contributions (Intermediaries) Regulations 2000 and the Social Security (Categorisation of Earners) Regulations 1978 including Agency Tax Legislation, IR35 Legislation, MSC Legislation, Current Off-Payroll Rules, New Off-Payroll Rules, and all consequential amendments to social security legislation, and changes to existing tax legislation affecting worker services provided to public authorities and private sector organisations through intermediaries and including any other tax legislation relating to unincorporated businesses and sole traders;
Termination Services	the provision of services by the Freelancer to the Client to allow the client to migrate, transition, or handover over the delivery of the Freelance Services to another supplier or internal team, and which includes but is not limited to completing and delivering any Deliverables requested by the Client, delivering up all documents, materials and work in progress of the Freelancer to the Client in organised files and which is legible and easily accessible to the Client, and to ensure that the Freelancer (including any Representatives as applicable) provide a handover of the Freelance Services to an alternative supplier;
Time Report	means the record of the time spent in the performance of the Freelance Services, the details of the Freelance Services performed and Deliverables delivered during the Booking and which may be in the form of a timesheet or services record via the Platform;
VAT	Value Added Tax or sales tax (as applicable) at the prevailing rate from time to time;

SCHEDULE 1 – PART B (INTERPRETATION CLAUSES)

- (i)** Clause headings are purely for ease of reference and do not form part of or affect the interpretation of the Agreement.
- (ii)** Words denoting the singular include the plural and vice versa.
- (iii)** Words denoting any gender include all genders.
- (iv)** Reference to a clause or schedule, unless otherwise defined, shall be to a clause or schedule of this Agreement.
- (v)** Reference to a **person** include a reference to any individual, company, partnership, trust, joint venture, association, government or local authority department or other authority or body (whether corporate or unincorporated).
- (vi)** References to statutory provisions will be construed as references to those provisions as respectively replaced, amended, or re-enacted from time to time (whether before or after the date of the Agreement) and will include any provisions of which they are re-enactments (whether with or without modification) and any subordinate legislation made under such provisions.
- (vii)** Any words following the terms **including, include, in particular, for example, without limitation** or any similar expression shall be construed as illustrative and shall not limit the sense of the words, description, definition, phrase or term preceding those terms.
- (viii)** References to termination or determination of the Terms and or any Agreement include references to expiry of the Terms and or any Agreement.
- (viv)** Reference to **writing** includes email and similar means of communication

- (x) Reference to the **parties** shall mean together the Contracting Party and the Freelancer for the purposes of any Agreement (including reference to their successors in time, permitted assigns and novatees) and reference to a **party** shall be construed as a reference to either of the parties.
 - (xi) References to **day** will mean calendar day, and references to **week, month** and **year** will be construed the same.
 - (xii) Reference to **howsoever arising** shall be construed widely to cover all causes and actions giving rise to liability, including but not limited to (i) whether arising by reason of any misrepresentation (whether made prior to and/or in any Agreement), negligence, breach of statutory duty, other tort, breach of contract, restitution or otherwise and (ii) whether arising under any indemnity and (iii) whether caused by any total or partial failure or delay in supply of the services of the PAYE Freelancer and or Worksome.
 - (xiii) References to **PSC Freelancer** will in the case of a limited company contractor include reference to any **Representative** utilised by the PSC Freelancer. References to **Client** shall include any **End Customer** unless the context states or infers otherwise;
 - (xiv) Reference to **controller, processor, personal data, personal data breach, data subject, and process, and or processing** shall refer to those terms defined under GDPR.
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SCHEDULE 2 – CLIENT AGREEMENT

DETAILED FREELANCER TERMS AND CONDITIONS

1 Scope of services and background

1.1 The Client has entered into terms of business with the Platform Provider to assist with booking and management of Freelancers. Regardless of any agreement between the Freelancer and the Platform Provider the Freelancer agrees to enter into this agreement with the Client to provide the services set out above in the Summary Terms (as amended from time to time by agreement of the parties in writing) (the “Services”). In the event there is any conflict between the Platform Provider Terms and Conditions and this Agreement, this Agreement will take precedence.

1.2 The period of engagement is as set out in the Summary Terms.

2 Providing the Services

2.1 The Freelancer will provide the Services with all reasonable care and skill, efficiently and in a lawful, proper and timely manner.

2.2 The Freelancer must:

- (a) keep such records of his/her work as the Client may reasonably require; and
- (b) provide reports or other information about the Services as and when reasonably required by the Client.

2.3 When providing the Services at the Client's premises, the Freelancer must comply with any applicable policies, procedures and rules of the Client relevant to independent contractors and suppliers to the Client.

2.4 The Freelancer must not offer, give, request or accept bribes and must comply with the Client's Code of Conduct or the Bribery Act 2010.

3 Timing and location

3.1 The Freelancer will provide the Services at the times and location set out in the Summary Terms.

Client facilities

3.2 The Client will make available to the Freelancer the facilities set out in the Summary Terms for the purposes of providing the Services.

3.3 The Freelancer will pay the sum referred to in the Summary Terms together with VAT, as appropriate, for the facilities. Payment will be made within 14 days of receipt of an invoice from the Client.

4 Fees and expenses

4.1 The Client will pay the Platform Provider the Booking Fees set out in the Summary Terms and the parties hereto acknowledge that the Platform Provider will pay those Fees to the Freelancer for the Services as set out in the Summary Terms.

4.2 Subject to clause 5.3 all fees and other sums referred to in this Agreement are exclusive of VAT. The Platform Provider will pay to the Freelancer such VAT (if any) as may be chargeable from time to time subject to receipt by the Client of an appropriate VAT invoice.

4.3 No sums will be due from the Client to the Freelancer for providing the Services or in respect of expenses (if any) incurred by the Freelancer other than those set out in this Agreement.

4.4 For the purposes of determining any fee due, a day means eight or more hours of work. If agreed between the parties in writing, the Client may also pay for half days at a rate of half the daily fee and a half day means between four and eight hours of work

4.5 Any sums due from the Freelancer to the Client may be deducted from any sums due to the Freelancer from the Client.

5 Services not provided in accordance with this agreement

5.1 If the Freelancer does not provide the Services (or any part of them) in accordance with this Agreement, the Client may choose (at its sole discretion and without prejudice to any other remedies it may have):

- (a) not to pay any fee in respect of such Services; or
- (b) to require the Freelancer to remedy matters at his/her own expense.

5.2 If the Client chooses to require the Freelancer to remedy matters, then (without prejudice to any other rights or remedies it may have):

- (a) no fee will be payable by the Client in respect of the Services in question unless and until matters have been remedied; and
- (b) if matters are remedied,
 - (i) the Client will pay the fee due within 30 days of matters being remedied;
 - (ii) the fee due will not exceed the fee that would have been payable had the Services in question been provided initially in accordance with the Agreement.

6 Confidentiality

6.1 During and after the Freelancer's engagement by the Client, he/she must not (unless required to do so by law, protected in doing so by a legal right of protected disclosure or doing so in properly providing the Services):

- (a) disclose any of the Client's or any Client Group Company's trade secrets or confidential information to any person; or
- (b) use any of the Client's or any Client Group Company's trade secrets or confidential information for any purposes other than the Client's.

6.2 The Freelancer must make sure that he/she keeps all trade secrets and confidential information which he/she obtains or otherwise receives in connection with the Services safely and effectively protected against improper disclosure or use. The Freelancer must also use his/her reasonable endeavors to prevent improper disclosure or use of such trade secrets or confidential information by third parties.

6.3 The words "confidential information" include but are not limited to:

- (a) lists of the Client's or any Client Group Company's actual or potential customers or clients;
- (b) details of relationships or arrangements with or knowledge of the requirements of the Client's or any Client Group Company's actual or potential customers or clients;

- (c)** details of the Client's or any Client Group Company's business methods, finances, prices or pricing strategy, marketing or development plans or strategies;
- (d)** details of any tenders, pitches or presentations proposed or made by the Client or any Client Group Company;
- (e)** personal information about any of the Client's or any Client Group Company's directors or employees;
- (f)** information divulged to the Client or any Client Group Company by a third party in confidence;
- (g)** and any information relating to the Client or any Client Group Company or any of its or their customers or clients which the Client or any Client Group Company or customer or client in question reasonably considers to be confidential.

6.4 These obligations will not apply to information which comes into the public domain other than by reason of the Freelancer's default or breach of these obligations.

7 Data protection and monitoring

7.1 In this Agreement:

- (a)** "Services Personal Data" means personal data of which the Client is controller which the Freelancer will, in providing the Services, process on the Client's behalf;
- (b)** "Data Protection Legislation" has the meaning set out in section 3(9) of the Data Protection Act 2018;
- (c)** "GDPR" means Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data;
- (d)** "Losses" means losses, damages, liabilities, claims, costs and expenses including fines, penalties, legal and other professional fees and expenses
- (e)** Words and expressions defined in Article 4 of the GDPR shall have the same meaning in this Agreement.
- (f)** The provisions of this Clause 8 are separate from and additional to any right or obligation that relates to personal data in other provisions of this Agreement.

Compliance with Data Protection Legislation and this Agreement

7.2 In connection with this Agreement, each party shall, whether acting as controller or processor comply with its obligations under Data Protection Legislation.

Controller to controller data sharing

7.3 In connection with the Services, a party which processes personal data as a controller may provide that data (or some of it) to the other party which will separately process it as controller (controller to controller data sharing). For example, (and without limitation), each party is likely to provide the other with details of the names, contact and other details of individuals with responsibilities for or in connection with the Services.

7.4 Where controller to controller data sharing occurs, the parties will be separate (and not joint) controllers. The party receiving the shared personal data shall:

- (a)** process that personal data only for the purposes of and in connection with the Services and not for any other purpose;
- (b)** promptly notify the other party if it
 - (i)** receives any complaint, notice or other communication relating to the processing of that personal data or compliance with Data Protection Legislation; or
 - (ii)** becomes aware of any personal data breach. and, in such circumstances, shall provide such information, co-operation and assistance as the other party may reasonably require;
- (c)** process that personal data in a manner that ensures appropriate security of the data;

(d) ensure that the information required under Articles 13 and 14 of the GDPR (a privacy notice) is made available to any person who, in respect of that personal data, is a data subject.

Freelancer as processor of Services Personal Data

7.5 In providing the Services, to the extent that the Freelancer processes Services Personal Data, the Freelancer shall act as a processor on behalf of the Client. The provisions of Schedule 1 shall have effect.

Indemnity

7.6 The Freelancer shall indemnify the Client on demand against all Losses incurred by the Client or any Client Group Company arising from or related to:

- (a)** the Freelancer's breach of its obligations under this Agreement (including those obligations set out in Schedule 2); or
- (b)** the Freelancer's breach of Data Protection Legislation; and
- (c)** any claim by a data subject arising from or related to a breach by the Freelancer of this Agreement or Data Protection Legislation.

Compliance with policies and monitoring

7.7 If, in connection with the provision of the Services, the Freelancer uses the Client's computer and IT systems, the Freelancer:

- (a)** must comply with the Client's IT and security policies;
- (b)** should be aware that Client monitors its IT systems, that e-mail and internet usage is logged and that e-mails may be opened by persons other than the intended recipient. The Client may access e-mails and use records/logs for business purposes, including checking and ensuring compliance with its policies and with applicable laws, for virus-checking, conducting investigations and dealing with emails in the absence of relevant personnel.

8 Insurance

8.1 Without prejudice to his/her obligations under this Agreement or otherwise at law, the Freelancer must maintain with an insurer approved by the Client reasonable and appropriate insurance cover at all times including but not limited to professional indemnity insurance with limits of indemnity of not less than £1,000,000 for each and every claim or series of claims from the same originating cause.

8.2 The Freelancer will maintain the required professional indemnity insurance and public liability insurance from the date of this Agreement until the expiry of six years after the termination of his/her engagement.

8.3 As and when he/she is required to do so by the Client, the Freelancer will produce evidence to show that his/her insurance obligations under this Agreement have been met.

9 Intellectual property and proprietary rights

9.1 The Freelancer acknowledges that the Client or any Client Group Company is, from the date of creation, entitled to:

- (a)** ownership of the Materials and Inventions; and
- (b)** all of the Intellectual Property Rights in the Materials and Inventions, which the Freelancer hereby assigns to the Client or any Client Group Company with full title guarantee free from all encumbrances (and in the case of copyright and design rights by way of a present assignment of future copyright or design right, as applicable).

9.2 In this Agreement

"Materials" means any work or material created, developed, written, delivered or prepared by or on behalf of the Freelancer during the course of or in connection with the Services (whether individually, collectively or jointly with the Client or any Client Group Company and on whatever media) including (without limitation) any documents, reports, studies, data, diagrams, charts, specifications or computer programs and related copies and working papers, whether created, developed, delivered or prepared before or after the signing of the Agreement;

“Intellectual Property Rights” means all present and future copyright, design rights (whether registered or unregistered), patents, database rights, trademarks (whether registered or unregistered), trading goodwill, performer’s property rights, business names and any other analogous rights subsisting anywhere in the world and including all applications (or rights to apply), revivals, renewals and reversions; and

“Inventions” means any invention, improvement, modification, device, concept, process, formula, model or prototype which is created, devised, developed, discovered or worked on by the Freelancer (whether alone or jointly) during the course of or in connection with the Services.

9.3 The Freelancer undertakes to do anything reasonably required (both during and after the termination of his/her engagement) to ensure that all Intellectual Property Rights in the Materials and the Inventions belong to or are assigned to the Client or, if it requests, to any Client Group Company and to assist the Client or such Client Group Company in obtaining, registering, protecting, maintaining, enforcing or defending them (although the Client or any Client Group Company will not be obliged to do so).

9.4 The Freelancer will upon request by the Client or any Client Group Company, and in any event upon the termination of his/her engagement, promptly deliver to the Client or any Client Group Company all Materials and Inventions in the Freelancer’s possession or control.

9.5 The Freelancer will notify the Client or any Client Group Company of any Intellectual Property Rights owned by a third party which he/she intends to incorporate in the Materials or Inventions, where the relevant third party owner will not grant an assignment to the Freelancer or the Client or any Client Group Company. The Freelancer will obtain the Client’s or any Client Group Company’s prior written consent before using such Materials or Inventions in the course of the Services.

9.6 The Freelancer agrees because of the nature of his/her duties and responsibilities, he/she is under a special obligation to further the Client’s any Client Group Company’s interests.

9.7 The Freelancer will promptly disclose in writing and deliver any Inventions to the Client or any Client Group Company and will not disclose any Inventions to anyone else without the Company’s prior written consent.

9.8 Both during and after the termination of this Agreement, the Freelancer will give any information, explanations or demonstrations reasonably requested of him/her to enable the Client or any Client Group Company to make use of any Materials or Inventions.

9.9 If any moral right or analogous right arises in respect of any Materials or Inventions, the Freelancer:

(a) hereby irrevocably waives and agrees not to assert (save as directed by the Company) the right; and

(b) will ensure that all applicable consents have been obtained to entitle the Client and any Client Group Company to make the fullest use of the Intellectual Property Rights in the Materials and Inventions without restriction or further payment.

9.10 The Freelancer consents to the Client doing any act which would, in the absence of such consent, infringe the Freelancer’s rights in performance under Part II of the Copyright, Designs and Patents Act 1988 or any similar legislation anywhere in the world (such as recording a presentation or workshop given by the Freelancer).

10 Discrimination and dignity at work

10.1 The Freelancer must treat all employees, agents and contractors of the Client (and such agents’ and contractors’ employees) with respect and must not harass, victimize, or otherwise unlawfully discriminate against any such persons.

10.2 The Freelancer will indemnify the Client and keep it indemnified against any claims, liabilities, costs and expenses which the Client incurs as a result of, or related to, breaches or alleged breaches by the Freelancer of his/her obligations under this Clause.

Termination

11.1 Where the freelancer is operating as either a PAYE Freelancer or a Payroll Freelancer, the Client may terminate the Freelancer’s engagement at any time by giving to the Freelancer not less than one week’s notice in writing. Where the freelancer is operating as either a PSC Freelancer or a Sole Freelancer, the Client may terminate the Freelancer’s engagement at any time.

11.2 The Freelancer may terminate his/her engagement at any time by giving to the Client not less than one month's notice in writing.

11.3 The Client may terminate the Freelancer's engagement immediately by giving written notice having immediate effect if the Freelancer:

- (a) is in material breach of this Agreement; or
- (b) is unable or fails to provide the Services for any part thereof to the Client's reasonable satisfaction; or
- (c) fails to meet any deadline.

11.4 Upon termination of his/her engagement the Freelancer must:

- (a) provide such co-operation and information as the Client may reasonably request in connection with the termination and any consequences, including co-operating in a smooth handover of any ongoing work;
- (b) return immediately all items of the Client's or any Client Group Company's property which the Freelancer has in his/her possession or under his/her control in connection with his/her engagement (including any security pass, disks, tapes, documents or copies of documents); and
- (c) delete any documents or information belonging to the Client or any Client Group Company from any personal computer that he/she may have (unless returning that personal computer to the Client without retaining copies in any format).

11.5 For the avoidance of doubt, the termination of the Freelancer's engagement (however arising) will not affect:

- (a) any rights or obligations which have accrued up to the date of termination; or
- (b) any rights or obligations which expressly or impliedly survive the termination of the engagement.

12 Restrictions

12.1 In this Clause:

"Client" means any client of the Client or any Client Group Company with whom the Freelancer had material contact by reason of or in connection with the engagement;

"Competitor" means any Person who is carrying on or planning to carry on business in competition with the Client or any Client Group Company;

"Key Person" means any employee, director or Freelancer of the Client or any Client Group Company working in a managerial, financial, technical, creative, sales or marketing capacity (other than an individual in business on his or her own account providing professional independent advisory services to the Client or any Client Group Company) with whom the Freelancer had material contact by reason of or in connection with the engagement; and

"Person" means any individual, firm, company, association, corporation or other organization however constituted.

12.2 The Freelancer will not at any time during the engagement (either on his/her own account or for any Person) whether directly or indirectly:

- (a) encourage or try to encourage any Person who is a Client to withdraw its custom from the Client or any Client Group Company;
- (b) solicit or try to solicit the custom of any Person who at any time during the engagement was a Client with a view to supplying that Client with services in competition with the Client or any Client Group Company;
- (c) supply services to any Person who at any time during the engagement was a Client [if a reasonably likely consequence is that the Person will cease to use, materially reduce or not increase its usage of the services of the Client or any Client Group Company or vary the terms on which it uses such services to the detriment of the Client or Client Group Company];
- (d) solicit or try to solicit any individual who at any time during the engagement was a Key Person; or

(e) employ or enter into partnership or association with or retain the services (or offer to do so) of any individual, who at any time during the engagement was a Key Person.

12.3 The Freelancer will not at any time during the period of 12 months immediately following the termination of the engagement (either on his/her own account or for any Person) whether directly or indirectly:

(a) encourage or try to encourage any Person who at any time during the 12 months before the termination of the engagement was a Client to withdraw its custom from the Client or any Client Group Company;

(b) solicit or try to solicit the custom of any Person who at any time during the 12 months before the termination of the engagement was a Client with a view to supplying that Client with services in competition with the Client or any Client Group Company;

(c) supply services to any Person who at any time during the 12 months before the termination of the engagement was a Client if a reasonably likely consequence is that the Person will cease to use, materially reduce or not increase its usage of the services of the Client or any Client Group Company or vary the terms on which it uses such services to the detriment of the Client or any Client Group Company;

(d) solicit or try to solicit any individual who at any time during the 12 months before the termination of the engagement was a Key Person; or

(e) employ or enter into partnership or association with or retain the services (or offer to do so) of any individual who at any time during the 12 months before the termination of the engagement was a Key Person.

12.4 The Client agrees that the Freelancer may provide services of a nature similar to the Services to third parties during the term of this Agreement on the condition that any such services do not conflict or compete in any way with the provision of the Services and the Freelancer's obligations to the Client under this Agreement.

13 Holiday Pay

13.1 Where the freelancer is operating as either a PAYE Freelancer or a Payroll Freelancer, the Freelancer is entitled to statutory holiday pay, which will be in line with any AWR requirements cast upon their Booking. Where the freelancer is operating as either a PSC Freelancer or a Sole Freelancer, the Freelancer is not entitled to any paid holidays. Should the Freelancer wish to take unpaid holiday leave during the engagement, this should be agreed in advance between the Freelancer and the Client.

14 Status

14.1 The Freelancer is not an agent of the Client and (unless otherwise agreed in writing) will have no right to make contracts or enter any engagements on the Client's behalf.

14.2 The Freelancer will account to the appropriate authorities for any income tax or national insurance contributions due in respect of sums payable in connection with this Agreement. The Freelancer will indemnify the Client and keep the Client indemnified against any claim or demand made against the Client in respect of any such tax or contributions and against any interest or penalties imposed in connection with any such tax or contributions. The Freelancer will inform the Client of his/her tax reference number on request.

15 Miscellaneous

15.1 In this Agreement references to "Client Group Company" mean any holding company or subsidiary of the Client from time to time and any other subsidiary of any holding company of the Client from time to time, where "holding company" and "subsidiary" have the meanings given in sections 1159 and 1173 of the Companies Act 2006.

15.2 The Client and Freelancer confirm that they are not entering into the engagement in reliance upon any oral or written representations made to them by or on behalf of the other.

15.3 Any notice required or permitted to be given by either party to the other as set out in this Agreement shall be in writing addressed to the other party at its registered office or principal place of business or such other address as may at the relevant time have been notified pursuant to this provision to the party giving the notice.

15.4 This Agreement contains the whole agreement between the Client and the Freelancer in connection with the Freelancer's engagement by the Client.

15.5 No person other than the Freelancer and Client may enforce any term of this Agreement.

15.6 This Agreement will be governed by the laws of England and Wales and the Courts of England and Wales will have non-exclusive jurisdiction to adjudicate any disputes arising under it.

hello@worksome.co.uk worksome.co.uk

Contracting parties

Company:
Worksome Ltd

Worker:
DYNEXIA CREST

Signature

Omer Wasiq

Signed on 2025-07-03